

25CV07282 Oliver v. Saris—TENTATIVE RULING BELOW—no appearance is necessary if the parties accept the tentative ruling. If the tentative ruling is contested, the party must call the Judicial Assistant by 4pm on Thursday, August 13th to request to appear for oral argument.

County: sonoma

Division: Civil

Hearing date: 2026-08-14

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25CV07282, Oliver v. Saris—TENTATIVE RULING BELOW—no appearance is necessary if the parties accept the tentative ruling. If the tentative ruling is contested, the party must call the Judicial Assistant by 4pm on Thursday, August 13th to request to appear for oral argument.

TENTATIVE RULING AS TO 25CV07282, OLIVER v. SARIS

Plaintiff Lillian M. Oliver moves pursuant to CCP section 36(a) for an order granting trial preference in this matter. The hearing on the motion is CONTINUED to October 28, 2026, at 3:00 p.m., in Department 16, to be heard after this court hears the motion of Defendants/Cross-Complainants Hugh Futrell, Hugh Futrell Corporation, and Defendant Meda/Brookwood, LLC for reconsideration of the motion of Defendants Anthony Saris and Saris Fund Two, LLC ("Saris Parties") to compel arbitration.

On April 8, 2026, this court granted the motion of the Saris Parties to compel arbitration and stay this action pending completion of arbitration.

Code of Civil Procedure section 1281.4 requires a court to stay an action submitted to arbitration pursuant to an agreement of the parties. "Beyond that, the court's role is fairly limited. Once a petition is granted and the lawsuit is stayed, 'the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration.' [Citation.] During that time, under its 'vestigial' jurisdiction, a court may: appoint arbitrators if the method selected by the parties fails (§ 1281.6); grant a provisional remedy 'but only upon the ground that the award to which an applicant may be entitled may be rendered ineffectual without provisional relief' (§ 1281.8, subd. (b)); and confirm, correct or vacate the arbitration award (§ 1285). Absent an agreement to withdraw the controversy from arbitration, however, no other judicial act is authorized." (Titan/Value Equities Group, Inc. v. Superior Court (1994) 29 Cal.App.4th 482, 487, citing case.)

In the interim, the arbitrator takes over. It is the job of the arbitrator, not the court, to resolve all questions needed to determine the controversy, including questions of procedure and discovery, and granting relief for delay in bringing an arbitration to resolution. (Id., at p. 488.)

The cases cited by Plaintiff, including *Vinokur v. Superior Court* (1988) 198 Cal.App.3d 500, do not change this analysis. *Vinokur* involved the weighing of statutory rights. That court resolved a conflict between the substantive right to a preferential trial date afforded by CCP section 36, and the provisions for compulsory arbitration contained in CCP section 1141.11. It did not involve contract rights. Plaintiff acknowledges no case holds that CCP section 36 overcomes a contractual right to arbitration, which is a substantive right not merely a procedural convenience.

The determination that CCP section 36 does not overcome the right to contractual arbitration is supported by *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399. In that case, even though the 93-year-old plaintiff had been granted trial preference, the appellate court reversed the trial court's denial of the motion to compel contractual arbitration. "Laswell's advanced age and the trial court's decision to grant her trial preference have no relevance to whether Code of Civil Procedure section 1281.2, subdivision (c), applies and, given it does not, whether to grant the petition to compel arbitration." (*Laswell v. AG Seal Beach, LLC*, supra, at pp. 1409–1410.) It necessarily follows that since arbitration has been ordered, no trial will be held in this case such that there is no need to hear a request for trial preference.

Plaintiff cites no authority in support of her argument that the Saris Parties' refusal to cooperate in arbitration changes the outcome. Plaintiff must seek any remedy from the arbitrator or arbitration forum—not the court.

This Court does not address Plaintiff's remaining arguments as they are not relevant to the ultimate issue of whether this court has jurisdiction to hear the motion for trial preference.

The Court's minute order shall constitute the order of the Court.

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